

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103 Guild's Response Opposing Mootness Motion Filed May 18, 2026

The City's motion should be denied because it isolates one date from a six-event series governed by the same ordinance and the same preliminary injunction. The Guild announced February 14, April 11, June 13, August 8, October 10, and December 12 before suit. Its declarations, calendar, and stipulated facts place all six dates in the record. The January 23 order expressly covers the announced 2026 fairs, not only February. Four events remain after the City's motion, and the Guild continues arranging paid literary programs for each.

The controversy therefore has not expired. The ordinance remains in force; the City continues to defend it; the injunction restrains enforcement against the recurring series; and the City seeks reversal of that restraint. A merits decision will determine whether the interim protection remains valid while the district action proceeds. The parties' adverse legal positions have not softened because the first two dates passed under an enforceable order.

The motion also misstates the injury. The Guild did not need a completed denial of one named author to establish the burdens found by the district court. The forty-five-day rule, roster disclosure, uncertain amendment process, and repeated charges shape invitations and budgets before a final application is complete. Those same choices recur for June and every later date. The City cannot obtain dismissal by complying with the injunction for February and April while asking this Court to dissolve the protection governing the remaining events.

The record is sufficiently concrete without a new appendix. It fixes the six dates, historical seller and speaker ranges, recurring application requirement, fee schedule, customary timing of author confirmations, and absence of a binding late-substitution rule. The June program is not a new species of dispute. Weather, reservations, and rosters may vary, but the challenged legal conditions and planning injury repeat. Requiring another denial would impose the very harm preliminary relief prevents.

Current circuit authority confirms that recurring-season disputes do not become moot merely because a particular date or contest passes while the governing policy remains operative.

Robinson v. National Collegiate Athletic Association evaluates the continuing relationship and practical recurrence rather than treating one expired event as the whole controversy. Here the recurrence is especially direct: the same organizer, public site, ordinance, City, calendar year, and injunction remain before the Court.

The live dispute therefore concerns the continuing legal relationship, not a request for retrospective advice about an isolated afternoon.

The City's suggestion that district litigation alone eliminates the appellate controversy is incompatible with its own appeal. The City invokes 28 U.S.C. § 1292(a)(1) because the preliminary order has present consequences before final judgment. Those consequences run both ways. If the order burdens the City enough to warrant interlocutory reversal, it protects the Guild enough to present a live defense. The unresolved merits do not make review advisory.

No factual supplement is necessary, but the Guild can confirm the obvious if requested. It continues organizing the June 13, August 8, October 10, and December 12 fairs, expects paid authors, and relies on the injunction when accepting late program commitments. The City remains responsible for neutral safety administration under the order. Neither party has represented that the ordinance was repealed, amended, or disavowed.

Supplementation should not become an invitation to retry the preliminary record with post-order declarations. Mootness concerns jurisdiction, not whether later events strengthen one side's tailoring proof. The appellate briefs and joint appendix allow review of the order entered. A focused confirmation of ongoing dates could be accepted, but the motion supplies no basis to reopen the evidence on likelihood of success or the Winter factors.

The existing appendix already identifies the operative ordinance, calendar, parties, public site, recurring fee structure, and continuing preliminary restraint. Those fixed facts provide a concrete basis for decision without discovery into every invitation made after January.

The Guild respectfully asks the Court to deny the motion and proceed to the scheduled disposition of the appeal. Doing so neither guarantees permanent relief nor decides a hypothetical later application. It recognizes that an operative ordinance and injunction govern four announced events whose planning is underway and whose expressive opportunities cannot be restored after the dates pass.

The Guild has conferred in good faith about logistics for every event and will continue to provide time, format, attendance, equipment, and site information. That cooperation does not surrender its challenge to paid-speaker identity, topic, lead-time, and fee burdens. The live dispute is whether preliminary protection from those burdens was lawful. It remains fit for adjudication.

Respectfully submitted May 18, 2026, by counsel for the Piedmont Booksellers Guild. Counsel certifies electronic service on the City of Norvale and states that this response relies on the existing record and the undisputed public calendar.